

In his paper “A Theory of Freedom of Expression”, Scanlon highlights that a “philosophical defense of freedom of expression” should be aimed at answering the “charge of irrationality” (204). Here, it will be shown how Scanlon tackles this challenge: first through the endorsement of the Millian Principle, and second how this principle is a consequence of the view that people are free to express themselves but only to the degree that they remain “equal, autonomous, [and] rational agents.” (215)

To start his argument, Scanlon talks about “the principle, which seems to me to be a natural extension of the thesis Mill defends... and which I will therefore call the Millian Principle.” (213) Scanlon believes that this principle is fundamental, admittedly quite plainly, he says, “it seems to me fair to call the Millian Principle the basic principle of freedom of expression” (214) As there are conflicting views regarding the philosophy of Mill, Scanlon believes that the Millian Principle has the potential to provide more benefit than harm, though we must stray away from restricting expression of the people strictly due to the “harmful consequences that the principle allows us to consider.” (214)

Scanlon highlights two claims that support why he believes the Millian Principle to be ‘fundamental’ in regards to our understanding and application of freedom of expression: he believes that an answer to the “charge of irrationality” can be obtained by “explaining why certain of the most obvious consequences of acts of expression cannot be appealed to as a justification for legal restrictions against them,” and also because “the Millian Principle is the only plausible principle of freedom of expression in general and makes no appeal to special rights”. (215) So, in other words, just because examples can be thought of where the expressions of one may result in the harm done to another, doesn’t justify the proactively hindrance of them from becoming a reality (e.g. boxing – for how boring it would be, or perhaps, it wouldn’t even

become a sport if this approach to freedom of expression was enforced) Scanlon exhausts, “In order for a class of harms to provide a justification for restricting a person’s act, it is not necessary that [the person] fulfill the conditions for being legally responsible for any of the individual acts which actually produce those harms.” (214) Two examples will be stated here. Extending on the boxing example, is the boxer – the one landing all the punches – responsible for the harm that the audience feels as the losing boxer continuously gets hit? In other words, is the boxer responsible for the empathy that the audience has for the other fighter? Or what about musicians... are they responsible for the harm that their listeners do to themselves or to others, perhaps due to the lyrics of a song? Both the boxer and the musician aren’t technically responsible for the events that transcribe, but they are responsible for how they choose to exercise their right to freedom of expression, just as much as those that attend a boxing event or act on the lyrics of a song.

To elaborate on the concept of special rights being granted, it must be done so most appropriately (if possible) as to avoid others wanting for themselves, their own special rights, as some could hold the intent (perhaps it is unknowingly) to impede on the rights of others. This is why we can express ourselves, but must remain autonomous, which to Scanlon is defined as someone that, “must see [themselves] as sovereign in deciding what to believe and in weighing competing reasons for action.” (215) The individual “must recognize the need to defend their beliefs and decisions”, but this should not be taken to mean that “[the individual] must be perfectly rational even by their own standard of rationality” or more importantly, “that [the individual’s] standard of rationality must be exactly ours”. (215)